



Republic of the Philippines
Department of Health
OFFICE OF THE SECRETARY

NON-DISCLOSURE AGREEMENT

I, _____, an employee of _____, and assigned as _____ for the **INTEGRATED HOSPITAL OPERATIONS AND MANAGEMENT INFORMATION SYSTEM PLUS (IHOMIS+)**, is hereby legally bound, consents, and accepts the following obligations, terms and conditions as set forth in this Agreement in consideration of being granted *conditional access* to certain information that is owned by, produced by, or in the possession of the Department of Health (DOH), Philippines; and in compliance with the requirements of the DOH regarding confidentiality, privacy and security of information:

1. As used in this Agreement, *information* refers to confidential and/or sensitive information in which the loss of, misuse of, or unauthorized access to or modification can adversely affect the *national interest of the country, conduct of the DOH's programs, or the privacy* to which an individual is entitled. Confidential *information* is marked CONFIDENTIAL or unmarked CONFIDENTIAL but was declared confidential, and oral communications that have been declared CONFIDENTIAL by an Authorized Officer of the Department of Health (DOH);
2. I understand and accept that by being granted conditional access to *information*, confidence and trust are placed in me by the DOH and I am obligated to protect the *information* from unauthorized disclosure, in accordance with the terms of this Agreement and applicable laws, regulations, issuances and directives;
3. I have been informed that unauthorized disclosure, unauthorized retention, or negligent handling of *information* confidential information by me, may deprive the DOH, the rightful owner of the system of its intellectual property rights and could cause damage or irreparable injury to the Department and Government of the Philippines or could be used to the undue and unethical advantage of another nation/s or people such as myself and my company;
4. I shall not disclose or release *information* provided to me to anyone without proper authority or authorization from the DOH. Should there are situations that warrant the disclosure or release of *information*, I shall do so only under approved circumstances and in accordance with applicable laws, regulations or directives, and shall comply with any and all dissemination restrictions as required or relayed by the proper authority;
5. I shall not alter or remove markings which indicate a category of *information* or require handling instructions from any materials I may come in contact with, unless such alteration or removal is authorized by the DOH or consistent with applicable laws, regulations or directives;
6. Upon completion of my engagement as a/an _____ under the project's contract, or completion of my work whichever occurs first, I shall return all *information* to which I have access or which are in my possession. Further, I shall surrender promptly to the DOH any documents whatsoever that are in my possession;
7. I solemnly swear that any *information* given to me shall remain confidential even after the completion of the project itself;
8. I shall not retain any documentation, source code or other *information* both in soft and hard copies used in this project;
9. I shall not modify, reverse engineer, decompile or disassemble any subsystems, modules, and/or software program codes, and sell to any government or private entities later the outputs of this project;
10. I shall promptly report to the appropriate DOH officials any loss, theft, misuse, misplacement, unauthorized disclosure, or other security violations in which I have knowledge of and whether or not I am personally involved.
11. Unless and until I am released in writing by the authorized personnel of the DOH, I understand that all conditions and obligations imposed upon me by this Agreement apply during the time that I am granted conditional access, and at all times thereafter;
12. If any provision of this Agreement is held to be invalid or unenforceable, all other provisions shall remain in full force and effect;
13. I am aware that violations of the terms and conditions of this Agreement may result in the cancellation of my conditional access to *information* or subjected to sanctions provided by pertinent laws and statutes of the Philippines

IN WITNESS WHEREOF, I have hereunto set my hand this _____ day of _____ 2023 in the City of Manila, Philippines.

Affiant

SUBSCRIBED AND SWORN to before me this _____ day of _____ 2023, in the City of _____, Philippines.

Notary Public

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 2019.